



Module 22

Legal Issues

As a running coach, you will be advising clients on matters that involve their physical well-being. Because of this and the fact that we live in an extremely litigious society, protecting yourself from liability is of paramount importance.

The information in this module should not be construed as legal advice. Consult a licensed attorney in your jurisdiction regarding any topic in this module.

❖ OBJECTIVES

Upon completion of this module, you should have an understanding of the following areas:

- Insurance and certifications
- Client health screening
- Liability waiver
- Personal conduct
- Scope of practice
- Documenting workouts
- What constitutes a performance-enhancing aid
- Physiological testing in regard to a physician's presence
- Legal business structure

❖ AREAS OF FOCUS

INSURANCE AND CERTIFICATIONS

Insurance

Let's start by discussing working with a client in a health club environment. Most health clubs are required to carry insurance that covers its staff, so if you are employed by a health club, more than likely you do not need to purchase additional insurance.

If you perform coaching or training sessions at a personal training studio or apartment gym, the facility will most likely require you to show proof of liability insurance and possibly a personal training or coaching certification. Most facilities require at least a \$1 million policy and also require inclusion on the insurance policy as "additional insured." If this is the case, the apartment complex/studio will inform you of the exact name to put on the insurance policy. There is typically no extra cost to add an additional insured party to a policy. Depending on where you purchase your insurance, the price typically ranges between \$100 and \$400 annually for a \$1 million policy.

If you are training a client via the internet or elsewhere, it is still advisable to get a \$1 million policy to make sure that you are covered for almost anything that could happen.

Prior to purchasing insurance, make absolutely certain that the policy covers the type of training you will be providing, as in some cases fitness-based insurances do not cover sport-specific training.

Certifications

If you are coaching in-person, you need to be CPR/AED certified. CPR stands for *cardiopulmonary resuscitation* and AED stands for *automated external defibrillator*. The two primary organizations that provide CPR/AED training in the United States are the *American Red Cross*® (ARC) and the *American Heart Association*® (AHA). The other basic certification that is offered by both ARC and AHA is *first aid*. While acquiring this is a good idea, not all facilities will require it.

CPR/AED is a prerequisite to taking the UESCA running coach certification exam. As lifeguarding certifications include CPR and AED, UESCA accepts lifeguard certifications as proof of CPR/AED certification.

CLIENT HEALTH SCREENING

All clients must complete the *Health History Questionnaire (HHQ)* and *Physical Activity Readiness Questionnaire (PARQ)*. The gold standard for health screening forms within the US is the *American College of Sports Medicine (ACSM)*. ACSM provides the guidelines for exercise/testing prescription in the fitness industry. Assessing a client using these two tools (HHQ and PARQ) will give you a good picture of the overall health and potential risk factors of a client.

Sample PARQ and HHQ questions are noted in *Module 11: Client Intake*. It is strongly advised that the PARQ and HHQ questions noted in *Module 11* not be used “as is” with clients without consulting legal counsel.

LIABILITY WAIVER

You need to have your clients sign liability waivers. The waiver should absolve you of all liability and responsibility for all potential situations, including death. This waiver should be drawn up by an attorney. However, many coaches/trainers get their waivers off the internet. While a waiver does not prevent you from being sued, it helps to protect you in the event of a lawsuit. If you decide to use a liability waiver from the internet, it is advised to have it reviewed by an attorney in your local jurisdiction.

PERSONAL CONDUCT

You must conduct yourself professionally at all times and understand that how others perceive your actions and verbiage is subjective. Therefore, you must always err on the side of caution in regard to your actions and verbiage. While this holds true for clients of all ages, it is especially true when working with minors. For example, any physical contact that is not necessary from a coaching perspective should not occur. Examples of physical contact that are normal

within a coach/client relationship are physical cueing of exercises, taking anthropometric measurements, and assisted stretching. Note that even within these areas, proper judgment must be exercised. For example, when taking the chest girth measurement of a female client, the correct method is to instruct the client to hold the tape measure level with the nipples and to assess the girth measurement from behind the client. If performing a hip girth measurement, it should be taken from the side of the client rather than from the front or rear.

Prior to performing any action that requires physical contact, you must inform a client what it is you intend to do, as well as the purpose of the action. You must obtain consent regarding this type of physical contact. Do not assume that this pertains only to coaching the opposite sex. Regardless of the age or gender of a client, this protocol must be followed. Following is an example of a proper way to inform a client of your proposed action and asking for consent:

“Sara, during the back-row exercise, I typically place my fingers on the midback muscles to ensure that the correct muscles are being activated. However, before I do this I just want to make sure you are comfortable with this.”

If your client’s answer is “No,” you cannot physically cue the individual during this exercise, or likely during any exercise.

Anything that could constitute physical or sexual abuse (verbal or physical) is prohibited. What is considered abuse is highly subjective so you must always be aware of your actions. If your client states that something you are doing makes the individual uncomfortable, you *must* discontinue this action immediately.

SCOPE OF PRACTICE

Upon passing the running certification exam, you will be a certified running coach – not a doctor, not a physical therapist, or a registered dietician. It is of critical importance that this is understood and, more to the point, practiced and respected. As a professional, you must understand your professional limits and responsibilities. While mentioned previously in this certification, following is a listing of things that you cannot do as a certified running coach:

1. Prescribe medications or sports supplements

2. Prescribe a nutritional program*
3. Diagnose and/or treat any injury or perceived medical condition
4. Manual therapy such as massage, trigger point, etc.

* Check with the local and state laws

You can inform and educate but never prescribe any medication, sports supplement, or nutrition program. Nor can you diagnose or treat any injury or medical condition. The only thing you can “prescribe” in regard to injury prevention/intervention is RICE:

R – Rest

I – Ice

C – Compression

E – Elevation

Scope-of-Practice Scenarios

Following are four scenarios along with the correct way to handle them:

Scenario 1

Client: Your client comes to you with a sore ankle that has not been getting better over the last two training runs and is seeking your advice on how to deal with it.

You: Assuming you have evaluated the client’s biomechanics prior to working with the individual and have advised the person on running form, at this point the professional thing to do is to make a referral to a specialist.

Scenario 2

Client: Your client just read about a new diet in a recent magazine article and wants you to put together a similar diet for her.

You: You need to inform her that you are unable to do so because this is the realm of a registered dietician (RD), not a running coach. It would be advisable to refer her to an RD to get her questions answered as well as a nutrition plan made for her.

Scenario 3

Client: Your client wants to incorporate a creatine supplement into his program and wants to know which is the best one to get and how much to take per day.

You: You can only inform your client on what the purported effects of creatine are. Selecting a creatine and more specifically, advising on how much to take is outside your scope of practice. Just because most sports supplements are over-the-counter does not mean they cannot do harm to an individual.

Regarding medications and supplements, most anything that can be purchased in a drugstore falls into the category of things that cannot be prescribed or administered by you. Some of the things that fall into this category, even though they are not necessarily prescription medications, are:

- Pain relievers/anti-inflammatories (e.g., *Advil*®, *Tylenol*®)
- Decongestants (e.g., *Sudafed*®)
- Diet pills (e.g., water pills)

Scenario 4

Client: After completing an overhead squat assessment, you find that your client's arms fall forward and the person's lumbar spine rounds.

You: Working to correct these postural issues is within your scope of practice so long as no pain on the part of the client is present. However, if your client is not responding to your corrections and training program or if the postural issue is substantial, the correct thing to do is to refer the individual to a specialist.

DOCUMENT WORKOUTS

Anything you do or advise your clients on needs to be documented. Not doing so leaves you legally exposed if a client questions something you did or advised that caused the person harm. Additionally, it is advised to be as specific as possible. As an example, let us say your client accused you of assigning push-ups that resulted in a shoulder injury. If you did not document the exercise, it is the client's word against yours. However, if you document your sessions, you can state with

certainty if you did or did not perform push-ups during the session. This also has to do with asking for and receiving feedback during sessions. You should be asking clients if they are experiencing any pain during exercises, especially during strength and flexibility training. If pain is felt, you need to modify or cease the activity, as well as document feedback.

Prior to working with clients, you must inform them that if they feel any pain or discomfort past what is expected, they must let you know at that time (assuming you are working with them in-person). If you're not working with a client in-person, the individual must cease the activity and let you know that day via email or phone.

Detailed information you can provide about a session, as well as informing your client what you expect regarding feedback, will reduce your potential exposure to legal action against you.

PERFORMANCE-ENHANCING AIDS

It is important to discuss what is legal and illegal in regard to performance-enhancing aids. Many people automatically think of doping when they hear the words *performance enhancing*. However, this could be anything from a coffee in the morning to the use of illegal drugs. What is important to note is that what makes a substance or product illegal are the rules and nothing else. A sport's governing body could ban orange juice tomorrow, and what was a legal, healthy drink today is a banned substance tomorrow. For example, within some sports, caffeine is considered a banned substance but only in high concentrations.

With some drugs it gets a bit trickier, particularly involving individuals with asthma. The drug *albuterol* (bronchodilator) is banned by most sports as it is a performance-enhancing aid. However, for those who need it, a *therapeutic use exemption* (TUE) that requires a doctor's approval allows usage. A TUE states that an individual needs to use a banned substance to bring the person up to the level of "regular" participants. It is important as a coach to be familiar with banned substances so you know where the line of legal and illegal lies. Many athletes who test positive for controlled substances do not consciously do so as they may have unknowingly taken a vitamin or sports supplement that contained trace amounts of a banned substance. It is the responsibility of an athlete to know the contents of everything he or she ingests.

If a US-based runner has a question regarding a TUE, or whether a specific drug is on the banned list, the individual should contact the US Anti-Doping Agency (USADA) for more information. If residing outside the US, the country's national governing body, national anti-doping agency, and/or the World Anti-Doping Agency (WADA) should be contacted.

PHYSIOLOGICAL TESTING

The legal aspect of physiological testing has a lot to do with the administrator's scope of practice and local laws. Let us take blood lactate testing, for example. It is the responsibility of a coach to research all local laws pertaining to the drawing and disposal of blood – prior to performing a blood lactate test.

Another physiological test worth mentioning is the VO_2 max test. The VO_2 max test takes an individual to the physical limit in regard to cardiopulmonary stress. Many labs that test VO_2 max require a doctor's presence. While having a doctor on hand during a VO_2 max test is not required by law in most places, it is worth performing due diligence to confirm this. If, based on a client's HHQ and PAR-Q results, you feel the individual should not do a VO_2 max test, do not order one performed. A submax test might be an option for this individual, or perhaps no test would be best. Regardless, any submaximal or maximal test should be done with an AED present and with the client having gotten physician clearance for the test. If a VO_2 max test is administered, it is assumed that the administrator is qualified to run the test and fully understands the protocol.

Unless you are qualified to administer a VO_2 max test and have a physician and AED on-site, it is advised to outsource this test or perform a submaximal VO_2 assessment.

While hyperoxic training (training with supplemental oxygen) is noted in the certification as a referenced study, it is not suggested as a training methodology, and moreover, administering oxygen requires a certification and it is performed for medical purposes only.

BUSINESS FORMATION

When starting your coaching business, you will need to determine under what type of legal business structure it will operate. The four primary types of business structures are:

- Sole Proprietorship
- Partnership
- Limited Liability Corporation (LLC)
- Corporation

Of these four structures, only the LLC and corporate structures create a legal identity that is separate from you. This means that in the event you were on the losing end of a lawsuit, assets could be collected only from the company and not your personal assets, such as your house or personal finances. This is because the lawsuit would be against your company and not against you personally.

Therefore, it is highly recommended that you structure your coaching business as a legal entity that is entirely separate from you.

It is strongly advised to work through an accountant, attorney, or company/individual who specializes in business formations. Following are three things that you will likely need established if setting up your company as an LLC or corporation.

1. Local Business License(s)
 - If doing business under a name other than your own, you might need to file a *doing business as* (DBA) form with your business name.
2. Federal Tax ID # (also called Employee Identification Number or EIN)
3. Business checking account

❖ SUMMARY

- If you are coaching independently, you need to purchase professional liability insurance.
- As a coach, being CPR/AED certified is an absolute requirement.
- Prior to working with clients, they must fill out a HHQ, PARQ, and liability waiver.
 - Ideally, you should have an attorney draft and/or review these documents.
- You must appreciate and work within your scope of knowledge and practice at all times.
- Document workouts.
- Be sure of all local laws prior to performing tests such as blood lactate and VO₂ max.
- If your client is performing a submaximal aerobic assessment, the individual must get physician clearance prior to performing the assessment.
- If coaching independently, it is advised to create a separate legal entity for your business.
- Your personal conduct must be professional at all times. This includes correspondence via phone and email.